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JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
(JUDICIAL DEPARTMENT)

Criminal Appeal No.325 of 2023

Saeed Khan Versus Omar Farooq, etc.

J U D G M E N T

Date of hearing	18.06.2025
The appellant by	Ms. Talat Nisar & Ms. Tahira Siddique, Advocates
The State by	Mr. Naeem Akbar, Deputy Prosecutor General with Mushtaq, Sub-Inspector.
The respondents by	Mr. Muhammad Naeem Siddique, Advocate with respondent No.01, namely, Omer Farooq.

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MUHAMMAD AMJAD RAFIQ, J. Through this criminal appeal against acquittal, the appellant/complainant has assailed the judgment dated 15.05.2023 passed by learned Senior Civil Judge (Criminal Division), Attock, whereby Umar Farooq & Kashif Mehmood, respondents No.01 & 02/accused were acquitted of the charge while extending them benefit of doubt, in case FIR bearing No.171 dated 12.09.2021 registered under sections 324/337-D/337F(i)/337F(ii)/34-PPC at Police Station Rango, District Attock.

2. Narrative of prosecution in FIR (Ex.PC) unfolds the case theory that on 12.09.2021 at about 06:30 p.m., the complainant-injured Saeed Khan (PW-02) went to a *karyana* store to purchase cigarette for his father but midway near a mosque in the chowk, two persons Umar Farooq & Muhammad Kashif, respondents No.01 & 02/accused started reviling him without any reason; on

asking of complainant-injured as to why they are doing so, Muhammad Kashif made a fire with his pistol 30-bore but he luckily escaped; then Umar Farooq (accused/appellant) caught hold of him and caused multiple injuries with knife (چھری) stabbed into his back, left deltoid region, left & right flanks due to which he fell down; on his commotion, witnesses Muhammad Saleem (PW-03) & Muhammad Khan (not produced) attracted at the spot and got him released from the accused persons; the accused persons decamped from the spot while brandishing their weapons.

3. It is to be noted here that by virtue of order dated 13.03.2023, learned counsel for the appellant opted to withdraw this criminal appeal to the extent of respondent No.02/accused, namely, Muhammad Kashif, therefore, now this appeal against acquittal is being decided only to the extent of respondent No.01/accused, namely, Umar Farooq.

4. Learned counsel for the appellant contends that complainant-injured Saeed Khan appeared in the dock as PW-02 who fully corroborated the prosecution story contained in the FIR Ex.PC by stating the role of respondent/accused Umar Farooq in clear terms whereby he has caused four incised wounds with knife (چھری) on his person; injuries have been examined and observed by Initial Medicolegal Officer (IMLO) Dr. Nabeel Ahmad MO (PW-06) thus, ocular account stands fully commensurate with the medical evidence; recovery of knife stood effected and its damaged tip was extracted by the Surgeon from the body of injured, therefore, learned trial Court has erred in law and facts while acquitting Umar Farooq, respondent /accused

5. Learned counsel for Umar Farooq, respondent/accused states that witnesses were not present at the place of occurrence and there was no clear-cut opinion with respect to attraction of section 337D PPC, therefore, learned trial Court has rightly

acquitted the accused after proper appreciation of evidence on record.

6. Heard. Record perused.

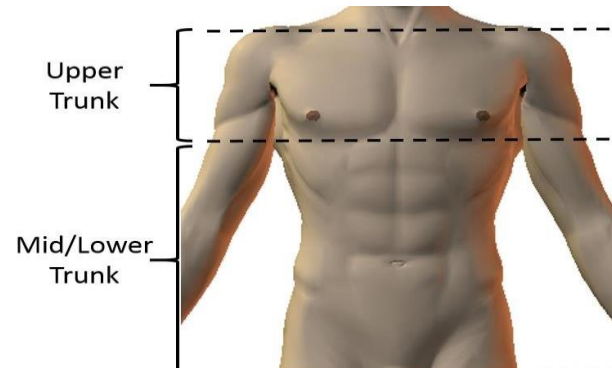
7. It was an occurrence of 12.09.2021 at 06:30 p.m. wherein though Muhammad Kashif, respondent No.02 (against whom this appeal has already been dismissed as withdrawn by virtue of order dated 13.03.2023) was under the allegation of making a fire shot at the injured but it did not hit him whereas present respondent No.01/accused Umar Farooq was burdened for causing four injuries on the person of complainant-injured who entered into the dock as (PW-02), narrated the whole story as mentioned in the FIR as well as in his statement under section 161 of Cr.P.C. During cross examination, his testimony could not be shattered by the defence in any manner. In support of his injuries, four doctors i.e., Dr. Zohra Jabeen Akram (PW-01), Dr. Nabeel Ahmad, IMLO (PW-06), Dr. Aroosh Hanif (PW-10) and Dr. Syed Waqas Hassan (PW-11) appeared in the Court, and the IMLO has observed the injuries on the person of complainant-injured in following terms:

- 1) Injury No.1: A stab wound with measuring size 3 x 1.5cm and deep muscle present on left flank region.
- 2) Injury No.2: A stab wound with measuring size 2 x 1cm deep muscle present scapular region and 8cm below Lt. shoulder joint.
- 3) Injury No.3: A superficial incised wound present on LT iliac crest with measuring size 1 x 0.5cm.
- 4) Injury No.4: A incise wound present on right lumber region with measuring 1.5 x 0.8cm.

After receiving report of Surgeon, IMLO with final opinion recommended addition of offence under section 337-D PPC as well.

8. Adverting to the contention of learned counsel for the respondent that it was not a case of Jurah Jaifa (337-C/D PPC) because there was no evidence with respect to extending any of the injuries to the body cavity of trunk, as neither the injured was operated upon nor through X-ray or CT scan report extension of

such injuries were shown into the body trunk, I have attended this submission in the light of evidence on the record. First it is to be defined what is a trunk. Here is the image;



The torso also known as the trunk is the central part of the human body that lies between the neck and the pelvis. It serves as the primary axis of the body and houses major organs within the thoracic and abdominal cavities, including the heart, lungs, digestive organs, and reproductive structures. The torso includes the chest, back abdomen and pelvis providing structural support and attachment points for the limbs. Now the nature and location of injury is to be attended in the light of above explanation.

9. Though injuries were on the locale of body trunk yet its extension into body cavity of trunk is essential for the applicability of offence of Jurah Jaifa defined in section 337C PPC, punishable under section 337D PPC. It is correct that no X-Ray, radiologist report or CT-Scan report was tendered into evidence in support of extending of injury into body cavity of trunk. Dr. Syed Waqas Hassan PW-11 Senior Registrar (surgery) Holy family Hospital Rawalpindi though claimed that CT scan and radiologist reports were examined by him and found a “laceration of left kidney”. Similarly, Dr. Zohra Jabeen Akram PW-1 also tendered her report Ex. PA/1. According to which “there revealed Grade-3 injury to left kidney”, A grade 3 injury to kidney, according to the American Association for the Surgery of Trauma (AAST) scale, involves a laceration deeper than 1 cm that does not involve the urinary collecting system (no urine

leakage). It may also include vascular injury or active bleeding confined within the perirenal fascia (the tissue surrounding the kidney). These injuries are more severe than grades 1 and 2 and may require closer monitoring and potentially interventions depending on the patient's condition. No expert was produced to explain the severity of such injury and PW-10 conceded during cross examination as under;

“It is incorrect to suggest that Grade-III injury touching the membrane of the kidney. Volunteered, Grade-III means kidney laceration more than 1 cm. It is correct that I am not qualified expert of CT scan.”

As per report Ex.PA/1 a foreign body was also removed from left iliac crest. It is also an admitted fact that injured did not undergo any operation so as to provide further evidence about track of injury extending to body cavity of trunk where kidney was located. It spurs out from the record that no clear connect of injury on iliac crest onto the kidney was shown by the prosecution, therefore, a serious question of law arises as to whether an outside injury causing an impact on an organ inside the body would attract offence of Jurah Jaifa as defined in section 337-C PPC. Let's see what it speaks which is as under;

337C. Jaifah. Whoever causes jurh in which the injury extends to the body cavity of the trunk, is said to cause jaifah.

Jurah has been defined in section 337B PPC which is as under;

337B. Jurh. __ (1) Whoever causes on any part of the body of a person, other than the head or face, a hurt which leaves a mark of the wound, whether temporary or permanent, is said to cause jurh.

(2) Jurh جرح is of two kinds, namely: __

- (a) Jaifah جائفه; and
- (b) Ghayr-jaifah. غ جائفه

From the above definition, it is clear that any hurt which leaves a mark of the wound whether temporary or permanent if extends to the body cavity of the trunk would be labelled as Jurah Jaifa. In this case prosecution has not brought on record link of injury on

left kidney with iliac crest through a mark of wound; therefore, mere impact of any injury or due to any other reasons like falling on the ground if produced any internal injury can be characterized with “other hurt” but not as Jurah Jaifa. In my opinion prosecution has failed to prove the charge under section 337-D PPC, but of course injury to left kidney was observed by the doctors and injured was also kept under conservative treatment for a longer period. Thus, in such situation, offence for “other hurt” as defined under section 337L (1) PPC is attracted from the evidence of prosecution. Section 337L PPC is reproduced;

337L. Punishment for other hurt. — (1) Whoever causes hurt, not mentioned hereinbefore, which endangers life or which causes the sufferer is to remain in severe bodily pain for twenty days or more or renders him unable to follow his ordinary pursuits for twenty days or more, shall be liable to daman and also be punished with imprisonment of either description for a term which may extend to seven years.

(2) Whoever causes hurt not covered by sub-section (1) shall be punished with imprisonment of either description for a term which may extend to two years, or with daman or with both.

10. No charge was required to be framed under such section when trial court was competent to flip the conviction and sentence under this section as authorized per section 238 of Cr.P.C. relevant part of it is reproduced as under;

238. When offence proved included in offence charged._(1) When a person is charged with an offence consisting of several particulars, a combination of some only of which constitutes, a complete minor offence, and such combination is proved, but the remaining particulars are not proved, he may be convicted of the minor offence, though he was not charged with it.

(2) When a person is charged with an offence and facts are proved which reduce it to a minor offence, he may be convicted of the minor offence, although he is not charged with it.

11. The observation of trial Court for innocence of respondent No.1/accused is beyond comprehension; trial Court remained wrangling with extraneous matters, like absence of any other witness at the place of occurrence. It is trite that when

complainant-injured himself was present and no fabrication of injuries was observed by the doctor, no other corroboration is required and mere on the sole testimony of an injured witness, conviction can be recorded, subject to availability of medical evidence which is available in this case. Even otherwise, Saleem Khan, (PW-03) is another eye witness of the occurrence who deposed that in his presence, Umar Farooq respondent No.01/accused caused injuries with knife on the person of complainant-injured Saeed Khan.

12. Thus, findings of trial Court for acquitting the respondent No.1/accused are flimsy particularly on ocular and medical evidence which are the deciding factors in a hurt case; therefore, the same are reversed. Impugned judgment to the extent of acquittal of respondent No.01/accused Umar Farooq is set aside. The instant appeal is, therefore, **allowed**. Consequently, Umar Farooq respondent/accused is hereby convicted and sentenced as under:

Under section 324 PPC:

Three years' rigorous imprisonment with a fine of Rs.10,000/- and in case of default in payment of fine, he shall further suffer simple imprisonment for one month.

Under section 337L (1) PPC:

Three years' rigorous imprisonment with payment of Daman of Rs. 2 lac and till the realization he would remain in jail.

Under section 337-F(ii) PPC:

To pay daman amount of Rs.10,000/- and till the realization he would remain in jail.

Under section 337-F(i) PPC:

To pay daman amount of Rs.5000/- and till the realization he would remain in jail.

All the sentences of imprisonment shall run concurrently with benefit of section 382B Cr.P.C.

13. However, on serving out of his sentence of imprisonment, if the convict is not in a position to pay Daman amount in lump sum, he can approach to the trial Court for payment of Daman amount in installments pursuant to section 337-Y PPC and if such an application is filed, learned trial Court shall decide the same in accordance with law. Umar Farooq, respondent No.01/accused is present before Court, he be taken into custody and be lodged to jail. Record of learned trial Court be sent back immediately and case property, if any be disposed in accordance with law.

(Muhammad Amjad Rafiq)
Judge

Approved for Reporting

Judge

Signed on

*M. Azhar**